

ceptions to answers for insufficiency, but exceptions for scandal or impertinence are not abolished.

(8).

June 1837.  
Time for pro-  
curing Report  
on reference  
for Scandal or  
Impertinence.

That, when an Order is made for referring an answer for *insufficiency* or for referring an answer or other pleading or matter depending before the Court for scandal or impertinence, the Order shall be considered as abandoned unless the party obtaining the Order shall procure the Master's Report within a fortnight from the date of such Order, or unless the Master shall within the fortnight certify that a further time to be stated in his certificate is necessary, in order to enable him to make a satisfactory Report, in which case the Order shall be considered as abandoned if the Report be not obtained within the further time so stated : and, where such Order relates to alleged insufficiency in an answer, such answer shall be deemed sufficient from the time when the Order is to be considered as abandoned.

June 1837.  
Costs of setting  
down cause  
where it is  
struck out of  
the paper  
through neglect  
of Plaintiff.

That, when a cause which stands for hearing is called on to be heard, but cannot be decided by reason of a want of parties or other defect on the part of the Plaintiff, and is therefore struck out of the paper, if the same cause is again set down, the defendant or defendants shall be allowed the taxed costs occasioned by the first setting down although he or they do not obtain the costs of the suit.

The terms of this Order would seem to apply to the setting down a cause by a plaintiff only, but the same rule would no doubt be observed, when under the present practice a defendant sets down the cause, and he making default the plaintiff would, it is apprehended, be allowed costs according to the above Order.

(23).

July 1837.  
Before whom  
answers, &c.,  
shall be taken.

That all answers, affidavits, depositions, and examinations to be made in any cause or proceeding by a party residing in the city of Toronto or within twenty miles thereof, shall be taken before a Master in ordinary of this Court ; and all answers, affidavits, depositions, and examinations to be made in any cause or proceeding by a party residing in this Province beyond the limits aforesaid shall be taken before a Master Extraordinary of this Court.

(17).

June 1837.  
Order Nisi for  
dissolving com-  
mon injunction.

That the Order *Nisi* for dissolving the common injunction may be obtained upon petition as well as by motion : and that every such Order be served two clear days at least before the day upon which cause is to be shown against dissolving the injunction.

That, wh  
compromise  
Solicitor fo  
Registrar o  
to be made  
plaintiff shal  
for such cer  
the same sh

That, for  
precise infor  
the means o  
thereof, any  
whether a pa  
procure and  
specifying th  
several proce  
in the said o  
cerned as So  
shall be entit  
such certifica

That, whe  
the Rules o  
petitions of r  
of this Provin  
It is therefor  
to deposit w  
petition of r  
Currency.

That all v  
other documen  
which do not  
affected there  
document, or  
served on the  
manner menti  
the party ser  
Solicitor shall  
is required by  
of any such w  
document, pro  
Solicitor so ne  
shall be deeme  
shall under spe  
wise.

That clerica  
or errors arisin  
at any time be  
without the for